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National report submitted pursuant to Human Rights Council resolutions 5/1 and 16/21*

Namibia

* The present document is being issued without formal editing.



I. Process for preparation of the report

1. The report was prepared by obtaining information in writing and holding consultative meetings from Offices, Ministries, and Agencies O/M/A's) which are members of the Inter-Ministerial Committee on Human Rights and Humanitarian Law (IMC).
2. Two meetings were held to verify the information submitted by O/M/A's. The meetings were attended by members of the IMC. The report underwent a process of approval by the Minister of Justice and Labour Relations and the Cabinet of the Republic of Namibia. Institutional consultations were held with civil society organisations and their views were taken into account.
3. Beyond the institutional consultations held, the Government is committed to broadening its engagement and to hold further public consultations to ensure that the perspectives of a wide array of civil society actors, community leaders, and the general public are reflected in the final report and in the ongoing implementation of human rights commitments.

II. Developments since the previous cycle

4. Namibia is a sovereign, secular, democratic and unitary State founded upon the principles of democracy, rule of law and justice for all. Namibia held its 8th Presidential and National Assembly elections during November 2024. Namibia also held its Regional and Local Authorities elections during November 2025. During the year 2023, Namibia conducted its population and housing census. The population of Namibia grew by 43.1% between 2011 and 2023, which increased from 2.11 million in 2011 to 3.02 million in 2023.
5. During the period under review, Namibia co-facilitated the Summit of the future; participated in the Human Rights 75 High Level Event; participated in the case of Obligations of States in Respect of Climate Change; hosted the 25th Anniversary of the United Nations Security Council Resolution 1325 on Women, Peace and Security. Namibia continues to implement the National Plan of Action on Women Peace and Security 2019-2024 (under review) and the National Gender Equality and Equity Policy for 2025-2035.

III. Promotion and protection of human rights on the ground

Recommendations (138.71-77, 244) (SDGs: 3, 4, 5, 10, 16)

6. The National Plan of Action on Gender Based Violence (GBV) places survivors first and stimulates a culture of care amongst families, communities and institutions which promotes early help-seeking behaviours. The Government in Collaboration with other Stakeholders and Partners creates awareness on GBV through campaigns on GBV prevention and response. Gender Liaison Officers in all fourteen regions also address GBV at regional level and sensitize community members daily on GBV and how to respond to it. Coordination of GBV interventions is done through national and regional GBV clusters.
7. To ensure access to justice by victims of gender-based violence (GBV), members of the GBV Protection Division conduct awareness campaigns and operations in collaboration with other stakeholders, to educate the public on GBV, rights of victims and survivors, the consequences of GBV, and available legal remedies to empower victims to come forth and report crimes. Information is shared with the public through media outlets as well community affairs offices. Annexure C – Table#12.

Recommendations (138.41, 45, 47, 48, 49, 50, 123, 222, 149) (SDGs: 5, 16)

8. The Government will determine upon request from special procedure mandate holders of the Human Rights Council, whether to grant or reject a request. Namibia enacted the Education Act which prohibits corporal punishment in school. Corporal punishment is prohibited by the Namibian constitution in all settings. Furthermore, the Government has implemented a number of measures to address recommendations which it supported during

the last review. However, some recommendations were not addressed due to the prolonged effects of the Covid-19 pandemic.

Recommendations (138.51, 259-260, 262, 46) (SDGs: 3, 5, 10, 16, 17)

9. In 2024 Cabinet issued a directive that the Government should conduct a review of the National Human Rights Action Plan (NHRAP) 2015-2019 and develop a successor plan. Namibia will continue with its efforts to fulfil its international obligations by developing and implementing comprehensive national plans and programmes. Furthermore, Namibia continues to implement its national programme for children and its harmonization with other strategies, such as the national strategic framework for the fight against HIV/AIDS and gender equality and child welfare framework.

10. The Government established the Inter-Ministerial Committee on Human Rights and Human Rights and Humanitarian Law (IMC). The IMC is a standing coordinating committee for implementation and Reporting. The IMC has been in existence since 2002.

Recommendation (138.49) (SDG: 16)

11. Namibia continues to support operations of civil society organisations. There are a number of civil society organisations which operate in the country. Civil society are members of the IMC and are consulted when reports are prepared for submission to the Universal Periodic Review Working Group, treaty bodies and the African Union. A meeting with civil society organisations was held to discuss this report on 24 November 2025.

Recommendation (138.231) (SDGs: 5, 10, 16)

12. The Government has provided financial resources to the relevant Ministries to tackle gender-based violence. The budget of the Ministry of Gender Equality and Child Welfare was increased by 23.2% to N\$8.0 billion in financial year 2024/2025. The budget includes N\$824.7 million to maintain real value of the social safety nets. The Government increased the frequency of food distribution to marginalized communities at a cost of N\$170.0 million, and N\$284.5 million to ensure full coverage of the Orphan and Vulnerable Children Grant.

13. The Ministry of Home Affairs, Immigration, Safety and Security received N\$7.4 billion in the financial year 2024/2025. N\$70 million was allocated to roll-out electronic identification cards (e-IDs) and ensure full coverage of civil registration through mass registration for national documents countrywide. During the 2025/2026 financial year, health and social services received N\$12.26 billion. Investment in the social sector for the Medium Term Expenditure Framework (MTEF) for the 2025/2026 to 2027/2028 financial years is earmarked for the implementation of programmes such as veteran's welfare, youth training and development programmes, tertiary and clinical health care services, health system planning and management, capacity building for gender mainstreaming, Early Child Development facilities, Primary Education, Senior Secondary Education, High Education and Vocational Education and Training. This sector is the second highest recipient of the Development Budget over the MTEF period with 21% allocation inside the State Revenue Fund and 20% benefits from outside the State Revenue Fund.

IV. Implementation of accepted/supported recommendations from the previous cycle

14. The information contained in this part relates to accepted/supported recommendations and their level of implementation are contained in Annexure A – Matrix of Recommendations.

15. Recommendations which were noted and comments on the level of implementation are contained in Annexure A – Matrix of Recommendations.

A. Constitutional, legislative framework and international instruments

Recommendations (138.2-39) (SDGs: 5, 11, 13, 16)

16. The position remains the same since the last national report of the 3rd cycle. However, Namibia became a state party to the International Labour Organisation (ILO) Convention 190 on sexual harassment and ILO Convention 156 on workers with families and responsibilities ratified on the 14 August 2025.

Recommendation (138.44) (SDG: 16)

17. Namibia fully cooperates and will continue cooperating with treaty bodies and special procedures of the United Nations. Namibia has no overdue reports and has submitted all the reports to all UN treaty bodies. During 2024, Namibia was reviewed by the Committee against Torture and the Human Rights Committee. In 2024, Namibia accepted a request from special rapporteur on freedom of expression and the Government is currently liaising with the special rapporteur for scheduled visit.

Recommendations (138.54-68, 111, 257, 258, 261, 269) (SDGs: 2, 4, 3, 5, 10, 12, 16)

18. The Constitution of the Republic of Namibia remains unchanged since the submission of the previous report. A number of legislative amendments and enactments were made during the period under review. A list of new laws and amendments since the last national report is annexed as Annexure B.

19. The Namibian Constitution; Child Care and Protection Act, 2015; Criminal Procedure Act 1977, Combating of Domestic Violence Act; and Education Act, 2020; prohibits corporal punishment in all settings for adults and children. The Code of Conduct for the Teaching Service issued in terms of the Education Act 2004, states that a teacher “may not administer corporal punishment or any other degrading punishment upon a learner”. The Criminal Procedure Act 1977 and other legislation which previously allowed whipping or caning as punishments for crimes committed by adults or juveniles were declared invalid by the Supreme Court of the Republic of Namibia. Consequently, corporal punishment is outlawed and prohibited in Namibia. The Child Care and Protection Act of 2015, effective from 2019, prohibits corporal punishment in settings such as schools, foster care, shelters, prisons, and police cells, and reaffirms its ban in judicial and traditional courts, while requiring parents to respect children’s dignity. However, it does not explicitly outlaw corporal punishment in the home, leaving some ambiguity. To address this gap, the Government and stakeholders developed a Parenting Manual on Positive Parenting, which promotes non-violent child-rearing practices. The manual provides parents with practical tools for positive discipline such as setting boundaries, praising good behaviour, using non-violent consequences, fostering emotional bonds while raising awareness about the harms of corporal punishment, encouraging nurturing and respectful approaches that uphold children’s rights and well-being.

20. To ensure that people who live near to resource rich areas benefit from social services and development projects, Namibia has a mining policy and law. The Mineral (Prospecting and Mining) Act 1992 stipulates that no persons shall carry any reconnaissance, prospecting or mining operations in Namibia except in accordance with the licence granted. Licence conditions which require operators to provide social services and other benefits or projects, are usually stipulated to improve the lives of people who live near mines. Namibia has a Policy on Community based Natural Resource Management 2013. Community Based Natural Resources Management (CBNRM) Policy is built on the basis that espouses sound environmental management and promotes the sustainable use of natural resources, in a manner that empowers local communities who should share the responsibilities and benefits of such management.

Recommendations (138.60, 63, 82, 83, 124, 136-139, 270) (SDGs: 5, 6, 10, 12, 16)

21. The Republic of Namibia enacted several laws during the period under review to promote and protect human rights of its citizens.

22. The Water Act, 2013 was brought into force in 2023.
23. To address gender inequality the Government developed the third National Gender Equality and Equity Policy (NGEEP) 2025-2035 a policy based on article 10 of the Constitution.
24. Old Persons are protected by the provisions of all laws which apply to all persons in Namibia. The Criminal Procedure Act proscribes criminal offences which protects all persons living in the Republic of Namibia including, older persons. Furthermore, the Namibian Constitution, the Labour Act 2007, the Combating of Rape Act 2000, Combating of Domestic Violence Act 2003, protect the rights and bodily integrity of all persons including older persons. The Ministry of Health and Social Services has developed the National Health Policy on the Care and Protection of Older Persons.
25. Namibia has a fully functioning independent judiciary. The Office of the Judiciary was established by the Judiciary Act 2015. The permanent structure of the Magistracy consists of 104 Magistrates. Currently there are 94 magistrates in the country. With regards to punishment after the enactment of the Correctional Act 2012, Namibia moved away from retributive forms of punishment to rehabilitative and restorative forms of punishment.
26. The High Court Act 1990, was amended to insert a definition of “primary home”; to impose restrictions on the sale in executions of immovable property; to empower the Judge-President to make rules regulating the procedure for cession of rights for matters brought before the court by certain litigants; to make rules regulating the procedure for the adjudication of commercial disputes; to make rules relating to the appointment, administration, security, jurisdiction and the fees of deputy-sheriffs and assistants to deputy-sheriffs; to make rules relating to the conduct and disciplinary procedure of deputy-sheriffs and Assistants to deputy-sheriffs.
27. The Namibia Correctional Service continues to recruit cadets to serve as Correctional Officers to enhance exiting rehabilitative programmes.
28. To improve the right to fair trial, Namibia continues to provide legal aid to persons who qualify to be represented in civil and criminal cases. The qualifying amount is determined on the basis of a persons monthly salary or earning. Therefore, persons who earn more than the qualifying amount are not eligible for legal aid. The qualifying amount for legal aid was increased from N\$ 3500.00 to N\$7000.00. Annexure C – Table#1.
29. The Dissolution of Marriages Act 2024 provides jurisdiction to Regional Magistrates Court to hear divorce cases. Previously, divorce cases were only heard in the High Court which is situated in Windhoek and Oshakati. The Magistrate Courts Act was amended in 2023 to increase their monetary jurisdiction. This improves access to courts since most towns have magistrates courts. Namibia has 104 magistrates courts which are composed as follows: 9 Regional Courts, 21 Circuit Regional Courts, 37 District Courts and 37 Periodic Courts.
30. There are 3 victim friendly courts in Namibia located at Katima Mulilo, Keetmanshoop and Windhoek.

Recommendation (138.69) (SDG: 16)

31. The Ombudsman was accredited as an A status institution in 2019 by the subcommittee on accreditation of the Global Alliance of National Human Rights Institutions. It was rated as fully compliant with the Paris Principles with the understanding that the Ombudsman Act 1990 should be amended to fully incorporate the Paris Principles. Consequently, the Ombudsman Bill 2024 was drafted and tabled during 2025. However, it was withdrawn for further consultations. The Ombudsman’s Office was allocated the following amounts over the years: N\$ 18,552,200.00 during the 2020-2021 financial year which increased to N\$ 22,637,360.00 during 2024-2025 financial year. The budget of the Ombudsman’s Office increased by 22.02% from the year 2020–2025 to ensure that it executes its mandate. The Office has been capacitated and decentralised into six regional offices to bring services closer to the people. In addition, staff members of the Ombudsman’s Office conduct regular visits to other parts of the country where it does not have representatives or Offices. Annexure C – Table # 2.

32. During the past 35 years, the Ombudsman's Office has been operating as an independent institution while its budget and procurement is administered by the Ministry of Justice and Labour Relations. Government resolved to enhance the independence of the Ombudsman in accordance with Article 89 of the Constitution and the Paris Principles on National Human Rights Institutions.

33. The Ombudsman Bill once enacted will de-link the Ombudsman's Office from the Ministry of Justice and Labour Relations and have its own accounting officer. The accounting officer will be responsible for the recruitment of staff in terms of the Public Service Act 1995 in consultation with the Ombudsman. The Bill will be re-tabled in Parliament in future.

B. Cross cutting issues

Recommendations (138.79, 81, 84-86, 89, 92, 99) (SDGs: 3, 4, 5, 10, 16)

34. The Constitution and its legislative framework prohibit discrimination on the grounds of sex, race, colour, ethnic origin, religion, creed or social or economic status. The Labour Act 2007 provides that – “A person must not discriminate in any employment decision directly or indirectly, or adopt any requirement or engage in any practice which has the effect of discrimination against any individual on one or more of the following grounds - (a) race, colour, or ethnic origin; (b) sex, marital status or family responsibilities; (c) religion, creed or political opinion; (d) social or economic status; (e) degree of physical or mental disability; (f) AIDS or HIV status; or (g) previous, current or future pregnancy”.

35. Namibia is implementing the Third NGEPP 2025-2035. The Third NGEPP is anchored on Article 10 of the Namibian Constitution, which states that “(1) All persons shall be equal before the law. (2) No persons may be discriminated against on the grounds of sex, race, colour, ethnic origin, religion, creed or social or economic status”. The Third NGEPP is aligned to the provisions of various regional and global commitments on gender equality.

36. Namibia has closed its gender gap by at least 81.1%. The Country is number 8 globally while in Sub-Saharan Africa, it is number 1. These improvements were in the areas of: Education; Economic Participation and Opportunity; Political Empowerment; and Health. Namibia has achieved full parity on both the Health and Survival and Educational Attainment sub-indexes.

37. Since 21 March 2025, Namibia has a female President, Vice President, Speaker of the National Assembly and the majority of Cabinet Ministers in Namibia are female. Currently, Namibia's Cabinet is composed of a majority of women (57%). The Government continues to lobby for the 50/50 representation in the political decision-making sector. The Government, through collaborations with International Institute for Democracy and Electoral Assistance (IDEA) continues to implement and hold capacity building workshops for women in Political and decision making roles, to enhance gender equality in these sectors.

38. To combat racial discrimination, the Government enacted and enforces the Racial Discrimination Prohibition Act, 1991 and is a state party to International Convention on the Elimination of All Forms of Racial Discrimination.

39. There is a quota reserved for indigenous people/marginalised communities namely, the San, Ovaherero and Ovambo at the University of Namibia and, Namibia University of Science and Technology. There is standing Cabinet Directive and policy to reserve certain vacancies in the Public Service to indigenous persons with disabilities and women.

40. The Government through its social services departments continues to hold awareness campaigns against the stigmatisation of HIV affected people.

41. The Third NGEPP 2025-2035 has strategies in place, to escalate civic education campaigns on HIV and AIDS targeting communities, schools, men, boys, Traditional Authorities, Persons with Disabilities and Marginalised Communities to address some of the gender-related barriers, toxic masculinities and harmful practices that fuel the spread of HIV and AIDS, and STIs.

Recommendations (138.112, 113, 172, 223) (SDGs: 1, 5, 10, 16)

42. Namibia will continue to promote sustainable economic and social development in order to provide a solid foundation for its people by developing and implementing its economic and social National development policies and plans. In 2025, Namibia launched its National Development Plan Six (NDP 6) which focuses on four (4) pillars, namely: Economic Recovery, and Resilience; Human Development and Community Resilience; Sustainable Development and Green Growth Opportunities, and Effective Governance and Public Service Delivery. NDP 6 also has an Implementation, Monitoring and Evaluation Plan (IMEP). The IMEP outlines the programmes and Sub-Programmes that will be implemented in the NDP6 period. It also outlines their cost. Under the 8th Government administration poverty eradication is a cross-cutting issue in all sectors. Government appointed National Planning Commissioners during August 2025, for a period of three years to monitor the implementation of the NDP6.

Recommendations (138.116-120) (SDGs: 11, 13)

43. The Government recognises and embraces the fundamental rights of people and further recognises the prediction that the most severe effects of climate change will be felt by poor people in rural areas, women, children and marginalised groups/ individuals. In accordance with article 95 of the constitution, the Government actively promotes and maintains the welfare of the people by adopting policies which address the impact of climate change on human rights.

44. Namibia has a National Policy on Climate Change (2011). The third NGEPP 2025-2035 makes provision for the implementation of strategies to address the impact of climate change by recognizing its disproportionate impacts on women and children, especially in rural and vulnerable communities, and by integrating gender-responsive strategies into adaptation, resilience, and disaster risk reduction efforts. Climate change continues to affect Namibia and increase risks of natural disasters emanating from climate change related drought and floods. Namibia has a Disaster and Risk Management Act 2012, which provides for disaster risk management in Namibia.

45. Namibia actively participates in the Southern African Development Community (SADC) Regional Disaster Recovery Framework (RDRF) and Action Plan development process, which was expected to be finalized by during 2025.

46. The Disaster Risk Management Act 2012 provides for establishment of Disaster Risk Management Committees (DRMC) at National, Regional, Local Authority, Constituency, and Settlement levels.

47. These DRMC are fully established at the National and Regional levels, where regular coordination and planning activities are conducted. At the Local Authority, Constituency, and Settlement levels, committees have been partially established, and efforts are ongoing to ensure their full establishment and functionality.

48. The provision of food to vulnerable communities forms part of Namibia's emergency response and social protection mechanisms, aimed at safeguarding lives and restoring livelihoods during and after disasters.

C. Civil and political rights**Recommendations (138.121-122) (SDG: 16)**

49. Namibia criminalizes acts of torture through its Criminal Procedure Act (sections 40, 42 and 49 schedule 1), Common Law and other Statutes. Disciplinary actions are instituted against police officers, military personnel and correctional service officers when they abuse their powers. Police Officers are normally charged under regulation 15 of the Police Act 1990, for misconduct. In addition to being charged with misconduct, Police Officers can also be charged for committing a crime if their actions constitute a criminal offence.

50. With regards to training provided to law enforcement officials on the prohibition of torture and other cruel, inhumane and degrading treatment or punishment, the Directorate

Training and Development of the Namibian Police, has an obligation to conduct awareness campaigns to 525 police officers per quarter and 2100 police officers per annum which is strictly adhered to. The Namibian Police Force has ongoing workshops to train police officers on human rights in accordance with the Namibian Police Human Rights Training Manual. The Ombudsman's office developed a Prevention of Torture Training Manual for police officers and training workshops were conducted during the period of 2020-2025 which targeted newly recruited officials.

51. Torture and ill-treatment of persons is prohibited by the Namibia Constitution, Child Care and Protection Act 2015, Combating of Domestic Violence Act 2003, Combating of Rape Act 2000, the Criminal Procedure Act, 1977. The process to enact the Torture Bill is ongoing. The Torture Bill was withdrawn from the National Assembly to finalize outstanding issues relating to penalties for offences.

Recommendations (138.114-115) (SDG: 16)

52. Namibia enacted the Access to Information Act during the year 2022. The Access to Information Act 2022 was passed by Parliament and is set to be operationalised by the Minister of Information, Communications and Technology by notice in the Government Gazette.

53. The Witness Protection Act, 2017 commencement notice was published in the Government Gazette of 31 August 2023, in terms of which the Act was operationalised as of 01 September 2023. The Whistleblower Protection Act 2017 is not operational due to policy, infrastructural and budgetary considerations that remain unresolved.

54. During the 2024/2025 financial year, the Anti-Corruption Commission was allocated N\$105,992,000 inclusive of operational and develop budgets, as per the Mid-Year Term Budget Review of the said financial year. For the 2025/2026 financial year, the Anti-Corruption Commission is allocated N\$116,549,000, of which N\$103,549,000 is allocated for operational activities, while N\$13,000,000 is allocated for the capital development. The budget allocation for the 2025/2026 financial year represents an increase of 9.96% compared to the 2024/2025 budgetary allocation. Annexure C – Table # 3.

Recommendations (138.140, 142) (SDGs: 5, 16)

55. The Combating of Domestic Violence Act 2003 was amended in 2022 to insert a definition of primary caretaker to extend the scope of domestic relationship complainants; to strengthen safeguards against intimidation of complainants; to obtain an interim protection order on an ex parte basis. Victims may apply for protection orders in cases of violence, harassment and threats of violence. A protection order may be sought at the same time when criminal charges are laid. To provide effective comprehensive services to victims of sexual and GBV, the Government, established 17 Gender Based Violence Protection Units (GBVPU), in 14 regions of Namibia. Annexure C – Table #4 & Table #5.

Recommendations (138.146-148) (SDGs: 9, 16)

56. The Constitution provides the right to freedom of speech and expression which includes freedom of the press and media in article 21. Namibia is yet to enact laws on Data Protection and or Cyber Crime. The Data Protection Bill and Cybercrime Bill are still at drafting and consultations of stakeholders' stage. Consultations on the Data Protection Bill have been concluded and the Bill is ready for tabling at the Cabinet Committee on Legislation. The Cybercrime Bill is at drafting Stage.

57. Press freedom is constitutionally guaranteed and respected by the Government. Article 21(1)(a), (b) and (d) of the Constitution guarantees freedom of speech and expression as well as freedom of thought, conscience and belief including academic freedom in institutions of higher learning; and the right to assemble peaceably and without arms. Media houses operate freely in Namibia. Namibia provides a safe environment for journalists to conduct their work. Journalists who are ill-treated or harmed may have recourse to the justice system of Namibia.

Recommendations (138.151-154) (SDGs: 1, 8, 16)

58. Namibia continuously implements the Combating of Trafficking In Person Act, as follows: A National Referral Mechanism and Standard Operating Procedures on trafficking in Persons was developed and launched on 29 March 2019.

59. The Government also provides services such as shelters, psychosocial support, medical, and legal services for Victims of Trafficking in Persons. The National Coordinating Mechanism is in place to ensure effective and timeous coordination among stakeholders. There is a National Action Plan on Trafficking in Persons for the period 2023-2027 which was officially launched on 28 July 2023.

60. Training on Combating Trafficking in Persons is offered and continuously takes place. Training has been provided to law enforcement officers (Namibian Police Force) Prosecutors, Community Liaison officers, social Worker's, Church leaders, traditional leaders and Media practitioners. The training focuses on issues pertaining to identification of victims, seeking of social support to the victims, prevention, awareness, investigation, prosecution and integration of the victims, and key stakeholders continuously provide technical training to staff members on Trafficking in Persons (TIP).

Recommendation (138.156) (SDG: 16)

61. The Constitution provides that Men and Women of full age, without limitation due to race, colour, ethnic origin, nationality, religion, creed, or social or economic status shall have the right to marry and to found a family. They shall be entitled to equal rights as to marriage, during marriage and at its dissolution. Marriage shall be entered into only with the free and full consent of the intending spouses. The family is the natural and fundamental group unit of society and is entitled to protection by society and the State.

62. Namibia passed the Marriage Act during 2024. Its object is to regulate the solemnisation of marriages; to provide for the validation and recognition of certain marriages; and to provide for incidental matters.

63. Namibia also passed the Dissolution of Marriages Act 2024. The Dissolution of Marriages Act 2024 consolidates and reforms the law on divorces relating to civil marriages; abolishes the common law grounds for divorce as well as grounds for divorce which applied under legislation before the commencement of this Act.

64. Family values are preserved through recognition and protection of its citizens cultures and customs. The right to enjoy, practise, profess, maintain and promote any culture, language, tradition or religion is enshrined in the Constitution. Furthermore, cultures are celebrated in many ways, in different forms and platforms. Town and Village Councils, Universities, Colleges, schools and Traditional Authorities usually hold traditional ceremonies and events to celebrate their culture and diversity.

65. Customary law is recognised and protected by the Constitution in Article 12(1)(f) and 66 to the extent that such customary law does not conflict with the Constitution or any other statutory law. The Government enacted the Community Courts Act 2003, Communal Land Reform Act 2002 and the Traditional Authorities Act 2000 to give effect to the constitutional rights to culture, allocation of customary land rights and recognition of customary law.

Recommendations (138.176-179) (SDGs: 1, 2, 3, 10)

66. Social Security is an integral part of Government 's effort to promote the welfare of the people. Social Security is regulated by the Workmen's Compensation Act 1941, as amended and the Social Security Act 1994.

67. Namibia's social protection system consists of social assistance, social insurance and occupational and private pension provision. Social assistance consists largely of a universal benefit for the elderly and disabled, a war veteran's benefits and financial assistance (individual project funds/monthly grant/once off gratuity/education and training grant/provision of houses/provision of land for resettlement/medical assistance), a number of child welfare grants to children under certain limited conditions (e.g. foster maintenance, disability, and vulnerable grants). The Government also provides Maintenance Grants;

Special Maintenance Grant; Foster Care Grant; Income Generating Activity Grant; Place of Safety Allowance to qualifying children or parents or persons. More information is provided in the Annex attached hereto. Annexure C – Table #6.

68. Namibia launched the Social Protection Policy 2021 - 2030 which aims to address risks and vulnerabilities faced by all Namibians to reduce poverty and inequalities, improve the livelihoods of the people, particularly women, poor and the vulnerable.

Recommendation (138.282) (SDGs: 10, 16)

69. Namibia takes note of this recommendation. Namibia enacted and promulgated Regularisation of Status of Certain Residents of Namibia, their Descendants and Foreign Spouses Act, 2024 to provide for a processes of application of acquisition of Namibian citizenship by naturalisation; by birth or descent of the descendants; acquisition of Namibian citizenship by marriage or customary marriage of foreign spouses of holders of South West Africa identification documents.

70. The Ministry of Home Affairs, Immigration, Safety and Security conducted consultations regarding the convention on the Reduction of Statelessness.

Recommendation (138.141) (SDG: 16)

71. The Namibian Correctional Service (NCS) in collaboration with the justice system in Namibia introduced Community Service Orders (CSO) program in 2010 as a measure to reduce overcrowding in the correctional facilities. The NCS has rolled out CSO to 35 courts out of a total number of 71 courts nation-wide earmarked for CSO rollout. The NCS planned to roll-out CSO to 7 courts in Omaheke and Karas regions during the 2023/2024 financial year.

72. There is a reduction of overcrowding since the programme diverts offenders that have committed petty offences to work in the community instead of admitting them into correctional facilities. CSO are being considered as a post-effective practice since on average the government's expenditure is at N\$1987.50 per inmate, per month. Offenders will retain their liberty, maintain their employment if they are employed, enabling them to continue positively contributing to the wellbeing of their family while serving their sentence.

73. Since April 2019 to 31 December 2023, a total of 2030 offenders were placed under CSO. The designed or total capacity of the prisons in Namibia is 5430 cells. The total number of prisoners stands at 4721 which is broken down as follows: 4578 sentenced inmates and 143 trial awaiting inmates. Consequently, there is available and unoccupied space of 709 inmates. Annexure C – Table #7 & Table#8.

74. Cleaning materials are provided to all Correctional facilities to ensure good sanitation and health; all facilities are clean and have potable water. All correctional facilities have working groups which include cleaning teams that clean the surroundings and the dormitories. All facilities have a clinic with qualified nurses and clinics at level I facilities (Hardap, Windhoek, Walvis Bay and Oluno) are supervised by medical doctors. Annexure C –Table #9.

75. Juveniles are kept separate from Adult inmates in accordance with section 64 of the Namibian Correctional Services Act, 2012 (Act No. 9 of 2012). There are guidelines on treatment of offenders as per the Mandela Rules. When the offenders are not treated according to the prescribed standards, the offenders can complain and has the right to take the matter to court. The Government has developed and implements a Correctional Service Health policy to address public health concerns in prisons, especially in relation to the prevention and treatment of HIV/AIDS to enhance the right to life. The implementation of the Namibian Correctional Service's Health Policy has brought about significant changes in managing communicable diseases such as Tuberculosis (TB), HIV and Hepatitis. It has also addressed mental health support.

76. There are no reports of extrajudicial detentions in Namibia. The right to liberty and security of persons is guaranteed under Article 7 of the Constitution. All persons who are arrested are informed of the reasons for their arrest in a language that they understand and upon arrest, persons must be brought before a magistrate or judicial officer within 48 hours

or as soon as reasonably possible thereafter. Our courts have ruled on the interpretation of the 48-hour rule and on what is meant by “as soon as reasonably possible” and held that it must be determined on the circumstances of each case. The Government has at least 104 magistrate courts country wide and this enables accused persons to appear before a magistrate or judicial officer within 48 hours or as soon as reasonably possible thereafter. In addition, accused persons may apply to court to be released on bail pending their trial.

Recommendation (138.155) (SDG: 16)

77. Article 13 of the Constitution protects persons from interference with their privacy and unjustified searches, save where it is necessary, justified and lawful. Namibia has no law on Cybercrime. However, Namibia is in the process of developing a law on Data Protection, the Data Protection Bill. Upon enactment Namibia will ensure that the laws on Cybercrime and Data Protection are fully compliant.

D. Economic, social and cultural rights

Recommendations (138.166-171, 173-175) (SDGs: 1, 2, 3, 4, 6, 10)

78. Namibia developed and implements the Social Protection Policy 2021-2030 which is efficient and effective in addressing risks and vulnerabilities faced by all Namibians across the life cycle to reduce poverty and inequalities, improve the livelihoods of the people, particularly women, poor and vulnerable. Its objectives are to increase coverage and access to social protection services by all Namibians. Government undertook measures to convert in-kind food assistance programmes for Food Bank and Marginalized special feeding programmes into a monthly cash transfer, as a first step to phase in a Conditional Basic Income Grant (CBIG), in line with the Harambee Prosperity Plan (HPP) II.

Recommendation (138.160) (SDGs: 10, 16)

79. The government provides a number of interventions to improve living conditions of its citizens. Interventions include payment of old age pensions; food bank; free primary and secondary education; free tertiary education will be provided in phases from the year 2026; school feeding programs; monthly grants for qualifying children or parents or persons (Maintenance, Special Maintenance, Foster, Orphans, and Vulnerable Grants); free health care; funeral and death benefits for aged persons; and income generating grants.

Recommendations (138.162-164) (SDGs: 6, 11, 16)

80. Namibia is faced with a challenge in the delivery of serviced land especially in the urban areas due to various factors. The short supply and accessibility of serviced urban land has resulted in an increase of prices of urban land and housing. Consequently, the majority of the citizens cannot afford to purchase urban land. The most affected are poor people in low-income groups. The National Housing Enterprise (NHE) which is mandated to construct low-cost houses for low- and middle-income people, constructed over 1000 dwellings in various towns across the country during the period 2022–23.

81. In 2023, the Cabinet approved the revised National Housing Policy and Implementation Action Plan, which provides for the accelerated interventions and actions to scale up the upgrading of informal settlements countrywide. Citizens have access to Government affordable housing facilities such as mass housing project and National Housing Programme “Build Together”. The Government subsidizes non-governmental initiatives such as those undertaken by the Shack Dwellers Federation of Namibia. During the period 2019/2020-2023/2024, 7 221 houses were constructed by Shack Dwellers Federation of Namibia with the technical support of Namibia Housing Action Group.

82. The State party acknowledges that local authority councils have evicted illegal occupants of land in their jurisdictions in accordance with their respective by-laws. However, the Government continues to seek solutions to address this challenge. In the matter of *Petrus Shaanika and 10 others v The Windhoek City Police and 3 others*, the High Court declared

Subsection 4(1) and (3) of the Squatters Proclamation No. 21 of 1984, to be inconsistent with the constitution and invalid and of no force and effect.

Recommendations (138.181, 189) (SDGs: 3, 6, 9, 10)

83. The Government is responsible for sanitation coordination in the country and provision of sanitation facilities in rural areas. In this regard, hygiene and sanitation awareness has been enhanced through participatory community education. This will increase coverage and the use of improved sanitation facilities in rural areas. The National Sanitation and Hygiene Strategy (2022-2027) focuses on promoting community -led and school-led sanitation programs, strengthening local partnership and expanding public awareness on hygiene practices.

84. The state-owned enterprise, Namibia Water Corporation, is responsible for providing water and maintaining water infrastructure in rural areas. Most local authority councils provide running water and sewerage system to inhabitants. The Government has policies on providing affordable water to vulnerable members of the community such as the elderly and the disabled. According to the 2023 Namibia Population and Housing Census, 60% of households in Namibia have access to toilet facilities, while only 36.2% of households in rural areas have access to such facilities. In urban areas, 22.6% of urban households (266,156) have no access to clean safe drinking water. Annexure C – Table #10.

85. The Neckertal dam was completed during the year 2019.

Recommendations (138.100, 190-211, 221) (SDGs: 3, 5, 10, 16, 17)

86. Namibia has made significant strides in advancing the right to health, marked by key policy initiatives and public health achievements. A major milestone was the 2024 approval of a Universal Health Coverage policy, designed to guarantee equitable healthcare access for all citizens without financial burden.

87. The country's public health success is demonstrated by its progress towards eliminating mother-to-child transmission (MTCT) of HIV and Hepatitis B, for which it has received Bronze Tier recognition from the World Health Organization. Namibia is also nearing the global 95-95-95% HIV treatment targets, having reached 93-95-98%. Namibia has started a process to develop the Universal health coverage Bill. Over 70% of Namibians lives within 10km radius of a health facility as recommended by the World Health Organisation. The ratio is 1:3 especially in rural communities.

88. Namibia has established a strong foundation for Universal Health Coverage (UHC) through significant public investment, expanded service coverage, robust financial protection, and improved health outcomes. In 2024, the Government of Namibia launched the UHC policy and its implementation Plan. The policy is designed to confront health disparities directly, by ensuring that efforts to strengthen the health system are in harmony with Namibia's wider goals for societal and economic advancement.

89. Namibia launched the National Strategy for Reproductive, Maternal, Newborn, Adolescent Health and Nutrition (2025/2026–2029/2030) and the Triennial Report on the Confidential Enquiry into Maternal Deaths, Stillbirths and Neonatal Deaths for the period 01 April 2021 to 31 March 2024. Namibia has put women and neonatal health to the forefront of the national health agenda to achieve maternal and neonatal health related sustainable development goals. According to the Namibian Demographic and Health Survey report of 2013, Maternal Mortality Ratio (MMR) estimate was at 385 per 100 000 live births, a slight decrease from 449 per 100 000 live births in 2006. Namibia's Maternal Mortality Ratio is estimated to be at 139 per 100 000 live births, which is still high compared to the global benchmark of achieving a maternal mortality ratio target of less than 70 per 100 000 live births by 2030. Statistics show neonatal mortality at 24 deaths per every 1,000 live births, whilst under 5s (U5) mortality is at 41/1,000 live births. Overall, neonatal deaths are reducing at a slower pace than the Under 5s (U5s). However, to achieve the Sustainable Development Goal (SDG) target of 70 per 100,000 live births requires an annual rate of reduction of 10.6%, which exceeds the current annual rate of 7.8%.

90. Namibia prioritizes Sexual Reproductive Health Rights (SRHR) as fundamental human rights through national policies that empower informed choices. These efforts have contributed to a notable decline in the Maternal Mortality Ratio (MMR), from 219 in 2020 to an estimated 139 in 2025. Achieving the SDG target of 70 will require an accelerated annual reduction rate of 10.61%.

Recommendations (138.194, 206, 209-210) (SDGs: 3, 5, 10)

91. Namibia has developed and implemented a National Reproductive Health Policy of 2012. The policy operates on four different levels, national, regional, district and community levels. In order to make this policy more effective, a multi sectoral approach has been employed in which other line ministries have a stake in its application to efficiently aid service delivery. The policy is guided by the International Conference on Population and Development principle on reproductive health that is recognized as a basic human right for every Namibian.

92. To address harmful practices, the government conducted the National Formative Study on Child Marriage in 2020. The government and stakeholders are in the process of implementing the recommendations from the National Formative Study on Child Marriage including the development of the National strategy on Child Marriage. Harmful traditional practices such as marriage of minors are prohibited in the Marriage Act of 2024 and by the Child Care and Protection Act. The Child Care and Protection Act prohibits persons to subject a child to social, cultural and religious practices which are detrimental to his or her well-being.

93. In line with the provisions of the Marriage Act 2024 and Child Care and Protection Act 2015, the Government plans to identify and gazette harmful practices through a consultative process in 2026, which will involve traditional leaders and other key stakeholders.

94. The goal of the National Policy on Sexual, Reproductive and Child Health (2013) is to attain the highest possible standard of sexual, reproductive and child health through the provision of equitable, accessible and affordable health and nutrition information and services. One of the Policy's guiding principles is "non-discrimination and gender equality". The Policy states that all Namibians shall be provided with quality sexual and reproductive health services irrespective of their age, gender, sexual orientation, religion, political affiliation or social-economic status.

95. Sixty-two health facilities nation-wide provide SHR/HIV integrated services. Data from these service assessments have revealed that provision of integrated services have the potential to increased Anti-Retroviral Treatment adherence rate for people with HIV, due to reduced stigma and an increase of first family planning uptake, especially among adolescents.

Recommendations (138.213-220, 272) (SDGs: 4, 5, 10)

96. Article 20 of the Constitution provides that, all persons shall have the right to education. Consequently, Namibia has laws and policies to protect and promote this right. The implementation of the Education Policy on Access to Education in Namibia has enabled the country to reap benefits in the form of 95% enrolment rate of 6 to 16 years old in the last few years.

97. The Government introduced specific interventions to address access to free education programme by rationalizing access, and provision of adequate facilities to ensure that no child of school going age is left out of school. The Sector Policy on inclusive education aims to provide access, equity and equality education to all children. The State continues to promote and provide free education as contemplated in Article 20 of the Constitution. With effect from 2026, the government will provide free tertiary education to its citizens.

98. The Government has since independence strengthened efforts to ensure that every child residing in Namibia has access to education. Such efforts include the building of mobile schools for marginalised groups such as the San and Ovahimba who live a nomadic life. Basic Pre-Vocational Skills Courses for learners with special needs in Resource and selected schools were introduced. The Basic Pre-Vocational Skills Course programme aims

to improve the educational as well as employment possibilities of learners with special needs and disabilities. The Government has committed itself to the implementation of the SDG4 Education 2030 and introduced a new curriculum for basic education. The reformed curriculum is aimed to strengthen the foundation level of basic education by formalising the Pre-primary grade to be part of the Junior Primary phase. Annexure C – Table #11.

Recommendations (138.42, 70, 165, 180) (SDGs: 1, 2, 4, 10, 16)

99. Namibia will continue to promote rights contained in the International Covenant on Economic, Social and Cultural Rights; take steps to mitigate the impact of COVID-19 related socio-economic challenges; developing agriculture and vocational training programmes in rural areas; expand access to food and educational opportunities for all children.

100. Namibia will continue to develop agriculture and vocational training programmes in rural areas and it will continue expanding its access to food and educational opportunities for all children. Namibia has a National Food and Nutrition Security policy which was revised during 2021, its implementation plan and, Food and Nutrition Security Coordination structures. To coordinate the implementation of National Food and Nutrition Security Policy Namibia established the Food and Nutrition Council.

Recommendations (138.157-159, 225, 271) (SDGs: 3, 5, 8, 16)

101. During the COVID -19 Pandemic the government recognized the role of health and essential workers and provided such workers with requisite safety equipment, procedures and guidelines.

102. Namibia has an effective affirmative action regime which is implemented and monitored by the Employment Equity Commission. Affirmative Action is implemented in respect of gender and persons with disability.

103. To protect vulnerable workers and low-paid workers such as agriculture workers, domestic workers, and security workers, Government enacted a Wage Order Setting the National Minimum Wage for certain employees (domestic, agricultural and security), for the years 2024, 2025, 2026 and 2027.

Recommendation (138.161) (SDG: 10)

104. The Government convened the Second National Land Conference, with the main objective of reviewing the progress made towards the implementation of the 24 Resolutions of the 1991 National Conference on Land Reform and the Land Question in Namibia. Two of the resolutions of the 2018 Second National Land Conference are addressing the land challenges of indigenous people in Namibia. These resolutions are as follows: Develop a policy to ensure the prioritization of various categories of Disadvantaged Communities in land reform programs; and Review and harmonize all legal instruments related to disadvantaged communities.

105. The Government developed implementation programmes for these two (2) resolutions, which will assist Namibia in resolving land related challenges of indigenous people. The National Resettlement Policy guides land redistribution or resettlement programme in the country. This Policy was recently reviewed to cater for the needs of marginalised communities in Namibia, among others.

E. Rights of specific persons or groups

Women

Recommendations (138.242, 138.150) (SDGs: 3, 5, 16)

106. The State Party is dedicated to advancing women's empowerment, gender equality, and participation of women in politics and decision-making. The Government ratified the SADC Protocol on Gender and Development which targets 50.0% gender representation at

all levels, as well as the AU gender parity principle globally in line with the SDG Goal 5 on Gender Equality.

107. The Government in collaboration with IDEA International conducted various sensitization workshops for women in Politics and Decision-making positions on the democratic processes including law making processes, gender related issues, Gender Responsive Budgeting and Gender Based Violence.

108. In April 2023, there was an official launch of the gender equality in politics project, and thereafter a set of activities was organized jointly by the Parliament of Namibia and the Inter-Parliamentary Union (IPU) in June and August 2023, which targeted support activities for female MPs and capacity-building workshops on gender mainstreaming, gender budgeting and the implementation of the Convention on the Elimination of All Forms of Discrimination against Women (CEDAW). Annexure C – Table #12.

**Recommendations (138.87-88, 91, 93, 144-145, 224, 226-227, 239, 247, 249, 251)
(SDGs: 3, 5, 10, 16)**

109. The State Party takes note of the recommendation, and it remains committed in addressing the issues of gender-based violence against women and children including those in the rural areas. It has taken measures in addressing gender-based violence by implementing laws aimed at addressing violence against women and children. The Combating of Domestic Violence Act, 2003 and the Combating of Rape Act, 2000 were amended (Combating of Domestic Violence Amendment Act, and the Combating of Rape Amendment Act) to strengthen and provide clarity to the provisions of the amended Acts. Despite efforts undertaken by the Government, gender based violence continue to occur in society.

110. The National Plan of Action on Gender-Based Violence (GBV) 2019-2023 is a five (5) year plan which is based on a socio-ecological model. The National Plan of Action on GBV puts survivors first and stimulates a culture of care amongst families, communities and institutions which promotes early help-seeking behaviours. The Government in Collaboration with other Stakeholders and Partners create awareness on GBV through campaigns on GBV prevention and response. Gender Liaison Officers in all fourteen regions address GBV at regional level and sensitize community members daily on GBV. Coordination of GBV interventions is done through national and regional GBV clusters. The Gender Based Violence and Violence against Children Standard Operating Procedures (SOPs) was developed and implemented. The purpose of the SOPs is to establish specific duties for each stakeholder i.e police, medical providers, social services, and legal actors, especially within Gender-Based Violence Protection Units (GBVPU).

111. Namibia intensified the # End GBV Namibia# campaign, which was conducted offline and online, and implemented under the leadership of the Ministries responsible for Gender and Information. The Government developed key training manuals on GBV, VAC, and TIP for essential service providers including police and health providers. In addition, the country is now progressing to the next phase by developing a comprehensive national strategy to end child marriage.

112. The National Plan of Action for prevention and responding to violence against children 2021-2025 was developed, which contains strategies to help address violence against children.

113. The Government in collaboration with other Stakeholders and Partners creates awareness on Gender- Based Violence (GBV) through campaigns on GBV prevention and response. Gender Liaison Officers in all fourteen regions also address GBV at regional level and sensitize community members daily on GBV and how to respond to it. Coordination of GBV interventions is done through national and regional GBV clusters.

114. To ensure access to justice by victims of gender-based violence, members of the Gender Based Violence Protection Division conducts awareness campaigns and operations in collaboration with other stakeholders, educating the public on GBV, rights of victims and survivors, the consequences of GBV and the available legal remedies helping to empower victims to come forth and report crimes. Information is shared with the public through media outlets as well community affairs offices.

115. The Government, in collaboration with key stakeholders implemented engagement programs with various traditional authorities, especially the Ovatie and Ovatjimba marginalized communities living in the remote areas of the Kunene Region. These programs focus specifically on awareness creation on GBV and cultural practices such as child marriage. The government through its Regional Offices also reached out to Persons with Disabilities on GBV prevention and response. Annexure C – Table #11.

Recommendations (138.143, 228-230, 232-238, 240-241, 243, 245-246, 248, 250, 252-256) (SDGs: 5, 10, 16)

116. Namibia has amended and promulgated legislation to address Gender Based Violence and Violence against Children. These include the Combating of Rape Amendment Act 2022, Combating of Domestic Violence Amendment Act 2022 and Childcare and Protection Act 2015, during the period under review. Government continues to implement the National campaign on Gender Based Violence (GBV) and Violence against Children (VAC) through the implementation of the prioritized National Plan of Action on Gender-Based Violence (2019-2023), and the National Training Manual and Resource Kit on Gender-Based Violence. National Plan of Action on Violence Against Children 2021-2025 aimed to strengthen child protection systems, promote child rights, ensure access to quality support services for survivors, and mobilize families, communities, and institutions to create a safe and nurturing environment for every child in Namibia. The training manual on child maltreatment for health service providers was developed and is being implemented. Training aim to strengthen the health sector's role in child protection by ensuring timely detection, appropriate referral, and provision of comprehensive care for affected children. Training for medical doctors and nurses in this aspect has begun.

117. Namibia has not established a sexual offender register. However, Namibia has a criminal record system which is kept by the Namibian Police. Consequently, sexual offenders and records for other offences are kept in the national criminal record system operated by the Namibian Police.

Recommendations (138.265-68) (SDGs: 4, 10, 16)

118. Namibia will continue to work towards aligning its legislation on disabilities with the provisions of the Convention on the Rights of Persons with Disabilities. Consequently, during 2025 Namibia amended the National Disability Council Act 2004, which contains the amended National Policy of Disability. The amended National Disability Policy 2025 provides all the relevant information on international instruments ratified by Namibia, Namibian legislation and statistics about persons with disability in Namibia. A copy of the amended National Disability Policy is attached hereto for ease of reference as Annexure D.

Recommendations (138.263-264) (SDGs: 5, 10, 16)

119. The Child Care and Protection Act 2015 (CCPA) defines a child under Section 1, as a person who has not attained the age of 18 years. This definition complies with international human rights law and is in alignment with the Convention on the Rights of the Child (CRC). The CCPA also provides for the age of majority under section 10. Furthermore, Namibia has made the African Charter on the Rights and Welfare of the Child (schedule 2) and the United Nations Convention on the Rights of the Child (schedule 3) part of the CCPA.

120. Namibia enacted the Child Care and Protection Act 2015 and the Marriage Act 2024 which prohibits practices of marrying of children. The government provides learners with knowledge and skills and information on sexual and reproductive health, especially in connection with HIV prevention through programmes such as the “Window of Hope” and “My Future My Choice”. Development of Ending Child Marriage strategy is underway. The main goal of the Ending Child Marriage Strategy is to eliminate child marriage by addressing its root causes, strengthening legal and policy frameworks, empowering children particularly girls and mobilizing families, communities, and institutions to protect the rights, health, and well-being of all children.

121. Government has developed and adopted the National Plan of Action on Violence against children 2021 -2025. Child friendly version materials were developed on harmful

practices. The National Agenda for Children 2025-2030 has a specific pillar addressing violence against children. There is also a specific focus area in the National Development Plan 6 on child protection with specific strategies addressing violence against children including indicator on child marriage rate.

Recommendations (138.280, 274-278) (SDGs: 4, 10, 16)

122. Namibia continues to promote and provide free education as contemplated in Article 20 of the Namibian Constitution. The Government has since independence strengthened efforts to ensure that every child residing in Namibia has access to education. Such efforts include the building of mobile schools for marginalised groups such as the San and Ovahimba/Ovatombe who live a nomadic life. The White Paper on indigenous peoples' rights in Namibia has been finalized with input from stakeholders, under the leadership of the Ombudsman. The White Paper on indigenous people has been submitted to the Parliamentary Standing Committee on Agriculture, Environment and Natural Resources and Standing Committee on Urban, Rural Development and Land reform, to consider recommendations. The Government recognises marginalised communities and there are specialised programmes designed to support them.

V. Status of implementation of voluntary pledges

123. Namibia made four pledges to the Human Rights 75 Secretariat during December 2023 and is engaged in implementing those pledges. The pledges are included in the sixth National Development Plan (NDP6) which has an implementation and monitoring plan. Financing of NDP6 will be based on the Integrated Financing Framework consisting mainly of conventional and non-conventional sources of finance.

VI. New and emerging issues

124. The Ombudsman has started a National dialogue on Business and Human Rights in 2025 and has proposed to incorporate a component on business and Human Rights in the successor plan post review of the National Human Rights Action Plan (2015-2020).

VII. Challenges

125. Namibia is experiencing a high unemployment rate and requires assistance from the international community to assist with modalities aimed at reducing the high unemployment.

126. Challenges highlighted are:

(a) The non-legislated quota of the 50.0 percent target risks regression after elections as political parties are not obliged by the Electoral Act, 2024 to field equal numbers of men and women as candidates;

(b) While there has been an increase of female enrolment from primary, secondary, high education and TVET there has been a decrease in enrolment and completion for males;

(c) The HIV prevalence rate is still high among females with 15.7% while among males stands at 12.6%;

(d) Gender-Based Violence (GBV) and Violence Against Children (VAC);

(e) Unemployment and poverty rate still high especially among the youth; and

(f) Access to water and sanitation is still limited.

127. Priorities for the next five years identified include:

(a) Gender Based Violence and Violence against children;

- (b) Strengthen Programmes on Gender Responsive Planning and Budgeting, Marginalised Communities and Persons with Disabilities;
 - (c) Sexual reproductive health and rights for women and men with special focus on Maternal Health, and HIV/AIDS;
 - (d) Reduction of Poverty;
 - (e) Address high unemployment; and
 - (f) Implementation, monitoring and evaluation of Universal Period Review recommendations.
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